

MATTER OF PRESTON

20PR8275

PLAINTIFF'S MOTION TO COMPEL DEPONENT TO APPEAR

Now before the Court is a Motion to Compel Deposition of attorney Claudia Y. Shafer ("Shafer") brought by Petitioner Chad Preston, Successor Administrator ("Petitioner.") Petitioner is represented by attorney Carrie M. McKernan. ("McKernan").

I. Relevant Background

Shafer was the former counsel for the Estate of Gregg Hall Preston ("Estate") and the Estate's former administrator Scott Preston. On February 13, 2025, Shafer was removed by this Court via Minute Order, as counsel from the Estate, along with Scott as the administrator; however, she remained as counsel for Scott Preston until the Court granted her motion to be relieved on October 13, 2025. Shafer is not a party to this action.

On February 10, 2026, Shafer appeared for an in-person deposition at the McKernan law firm offices. (Declaration of Carrie M. McKernan ("McKernan Decl.") ¶ 3.) Shafer participated in the deposition for approximately one hour before she abruptly terminated the deposition and left. (*Ibid.*) Prior to her abrupt termination and exit, Shafer stipulated on the record to return on Wednesday, February 25, 2026, from 9:00 a.m. to 12:00 p.m. (*Ibid.*) Shafer started the deposition without making any objections, other than to question the length of the deposition and to assert her need to leave early in order to take medications. (*Ibid.*, Ex. B.)

On February 11, 2026, McKernan's office served Shafer, by email, with a Notice of Taking Deposition (Part Two) formalizing the agreed date of February 25, 2026, at 9:00 a.m., and updated Requests for Production Nos. 10-11. (McKernan Decl. ¶11, Ex. C.) On the morning of the deposition, McKernan's office sent a reminder to Shafer about the deposition and Requests for Production. (*Id.* ¶ 4, Ex. D.) On the afternoon of February 23, 2026 (two days before the deposition was scheduled), Shafer emailed McKernan's office stating that there was no legal authority to depose her and she would not appear at the deposition, nor produce the documents, absent a court order. (*Id.* ¶ 5, Ex. E.) Shafer did not appear for the deposition and her absence was noted on the record. (*Id.* ¶ 6.)

Between March 23, 2026, and April 3, 2026, McKernan made multiple attempts to engage in meet and confer efforts. (McKernan Decl. ¶¶7, 8.) Shafer failed to answer the phone call at an agreed-upon time and further failed to respond to six additional phone calls. (*Ibid.*)

II. Legal Standard and Discussion

Pursuant to Code Civ. Procedure section 2020.010, a party may take the oral or written deposition of a non-party and may seek the production of business records. If, after service of a deposition notice, a deponent fails to appear or to proceed, the noticing party may move for an order compelling attendance, testimony, and production. (*Id.*, § 2025.450(a).) The motion shall set forth specific facts showing good cause justifying the production for inspection of any documents described in the notice. (*Id.* subd (b)(1).) A party who objects to the notice of deposition must serve written objections at least three (3) calendar days before the scheduled deposition. (Code Civ. Proc. § 2025.410(a).)

Here, Shafer agreed to attend a deposition and did in fact participate in approximately one hour of the deposition. She did not make any objection to participation in that deposition and on the record agreed to participate in a second deposition. However, only two days before the noticed deposition, Shafer sent an email stating only: “Based upon my research you do not have the legal authority to depose me given the facts of this case.” (McKernan Decl. ¶ 5, Ex. E.) Shafer did not move to quash the deposition notice and did not move for a protective order.

“In the absence of privilege, the right to discovery in this state is a broad one, to be construed liberally so that parties may ascertain the strength of their case and at trial the truth may be determined.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 538.) Shafer opposes the motion to compel on the grounds that deposing opposing counsel is highly irregular and may only be compelled upon a showing of the elements of a three-prong test as articulated in *Carehouse Convalescent Hospital v. Superior Court* (2006) 143 Cal.App.4th 1558, 1563.)¹ Petitioner did not file a response addressing this argument.

Regardless of the propriety of taking an attorney’s deposition, Shafer’s response was inadequate. Shafer did not provide a single specific written objection to the deposition notice other than a blanket refusal that was untimely. Shafer has not moved to quash the notice (which likely would also be untimely as she appeared based on the original notice and the notice for the agreed-upon resumption date appears more in the nature of a courtesy than a requirement), nor has she moved the Court for a protective order. However, even though Shafer has not sought a protective order, the Court and the parties must be cognizant of the fact that Shafer’s deposition may implicate the attorney-client privilege. While Shafer, in attending the first part of the deposition without objection, may have waived some of her own objections, she cannot waive the attorney-client privilege. That privilege belongs to the client alone. (*HLC Properties, Ltd v. Superior Court* (2005) 35 Cal.4th 54, 62.)

¹ *Carehouse* was addressing the deposition of the active opposing counsel – not the deposition of a former opposing counsel. Thus, much of *Carehouse*’s rationale behind avoiding such depositions is inapplicable in this case.

The motion to compel the deposition is granted, subject to the limitation of the attorney-client privilege to be asserted as appropriate on a question-by-question basis at the resumed deposition.

The motion to compel the production documents, however, is denied without prejudice. Any motion to compel the production of documents as part of a deposition must “set forth specific facts showing good cause justifying the production for inspection of any documents described in the notice.” (Code Civ. Proc. § 2025.450(b)(1).) The motion to compel does not provide any information about the requested documents, nor any good cause for production of those documents.

Petitioner seeks sanctions but does not specify the amount sought.

The Court may impose sanctions for the failure to respond to discovery requests as a misuse of the discovery process. (Code Civ. Proc. § 2023.030(a).) The Court must impose sanctions on Shafer’s failure to engage in the meet and confer process. (Code Civ. Proc. § 2023.020.)

Accordingly, the Court grants sanctions in the amount of \$1000.00.

III. Conclusion

The motion to compel deposition is granted; Claudia Scaffer must appear for the resumption/conclusion of her deposition within fifteen (15) calendar days of this Ruling. The motion to compel production of documents is denied, without prejudice, to refile with the necessary detail, if documents are not sufficiently produced at the resumed deposition. Sanctions in the amount of \$1,000.00 are imposed on Claudia Schaffer personally, to be paid to petitioner, by and through counsel, within fifteen (15) calendar days of this Ruling.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Proposed Order.